

111	Neri Bahena vs. Gregory's Pallet Inc. 22-01281126	Motion for Reconsideration Plaintiff Pedro Neri Bahena has filed a “Motion for Reconsideration and/or Finding of Contempt and Other Sanctions.” It is unclear what relief Plaintiff is requesting by way of this motion. Although the notice cites to CCP §1008, it does not indicate what the Court is requested to reconsider. Under the heading “Reconsideration,” the motion states that the court “is authorized to and should reconsider ruling on defendant’s demurrer.” However, the only argument made is that there is no final order granting demurrer without leave to amend, and therefore Defendant Certified Enterprises, Inc. is still a party to this action. A motion for reconsideration made by a party must be based on new or different facts, circumstances, or law than those before the court at the time of the original ruling. (Code Civ. Proc. § 1008(a).) The motion must also be accompanied by an affidavit from the moving party that states: (1) what application was previously made; (2) when and to what judge; (3) what order was made; and (4) what new or different facts, circumstances or law are claimed to be shown. (Ibid.) Plaintiff has not met any of the above requirements. The declaration filed in support of the motion does not contain any of the required elements. Nor does Plaintiff explain what new or different facts, circumstances, or law justify reconsideration of the original ruling. It is unclear what Plaintiff is asking the Court to reconsider, given that Plaintiff contends there has been no final ruling. Nonetheless, the court has the inherent power to reconsider its ruling if it believes it to be in error. (Le Francios v. Goel (2005) 35 Cal.4th 1094, 1108; Marriage of Barthold (2008) 158 Cal.App.4th 1301, 1307-1308.) Although not an issue raised by either party, in reviewing its 4/14/26 order sustaining
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	Defendant Certified Enterprises, Inc.’s demurrer to Plaintiff’s Complaint without leave to amend (ROA 180), the Court concludes that its prior ruling was erroneous insofar as Plaintiff was denied leave to amend. ""[F]or an original complaint, regardless [of] whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint "shows on its face that it is incapable of amendment."" (Tarrar Enterprises, Inc. v. Associated Indemnity Corp. (2022) 83 Cal.App.5th 685, 688.) "Where a demurrer is sustained or a motion for judgment on the pleadings is granted as to the original complaint, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment." (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852, disagreed with on other grounds by de Villers v. County of San Diego (2007) 156 Cal.App.4th 238, 254.) Thus, “leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action.” (Ibid.) Here, upon further consideration, it is not clear to the Court that there is no reasonable possibility that Plaintiff cannot state a good cause of action. The Court denies Plaintiff’s motion insofar as it seeks an OSC re: Contempt. Accordingly, the Court DENIES Plaintiff’s motion for reconsideration and for contempt. However, the Court MODIFIES its 4/14/26 order as follows: The first line of the ruling shall now read: The demurrer is SUSTAINED with 20 days leave to amend. The time for leave to amend shall run from the date notice of the modifications to this order is given.
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		The third from the last paragraph shall read: Here, Plaintiff has not asserted claims for false imprisonment, wrongful termination or civil rights violations. The claim is that he was personally injured while working. Plaintiff has not shown any applicable exception to workers' compensation exclusivity. Nor has Plaintiff demonstrated that these pleading defects can be cured by amendment. Nonetheless, as this is Plaintiff's first attempt to plead his claims, the Court will grant leave to amend. Defendant Certified Enterprises, Inc. to give notice.
112	Bian vs. Latreill 24-01390510	Anti-SLAPP Motion Plaintiff/Cross-Defendant Wenqiang ("Wayne") Bian ("Bian") moves to strike the second and third causes of action from Defendant/Cross-Complainant Rene Francis ("Ray") LaTreill's ("LaTreill") Cross-Complaint ("XC") pursuant to Code of Civil Procedure section 425.16. Code of Civil Procedure section 425.16 provides, in relevant part: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16(a).) Code of Civil Procedure section 425.16(e) sets forth four categories of protected speech for an anti-SLAPP motion, which includes "any written or oral statement or writing made before a . . . judicial proceeding." (Code Civ. Proc., § 425.16(e)(1).)